

Effective 1/1/2027

Chapter 72b

Digital Voyeurism Prevention Act

Effective 1/1/2027

Part 1

General Provisions

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13-72b-101 Definitions.

As used in this chapter:

- (1) "Artificial intelligence technology" means the same as that term is defined in Section 13-72-101.
- (2) "Consent" means express permission, freely and voluntarily given by an identifiable individual, with full knowledge of the nature and purpose of the generation of an intimate image depicting the individual, where the consent:
 - (a) is specific to the particular intimate image being generated;
 - (b) is obtained before the generation of the intimate image; and
 - (c) may be revoked at any time.
- (3) "Counterfeit intimate image" means a "digital forgery" as that term is defined in the Take It Down Act.
- (4) "Covered platform" means the same as that term is defined in Section 3 of the Take It Down Act, Public Law 119-12, 139 Stat. 59, codified at 47 U.S.C. 230 note.
- (5)
 - (a) "Distribute" means to sell, exhibit, display, publish, provide, give, provide access to, or otherwise transfer a counterfeit intimate image, with or without consideration.
 - (b) "Distribute" includes the generation of a counterfeit intimate image by a generation service and the subsequent provision of that counterfeit intimate image to the user.
- (6) "Generate" means to create, produce, compose, materially edit, or facilitate the creation of an intimate image through the use of artificial intelligence technology.
- (7) "Generation service" means a person that operates, maintains, or provides an interactive computer service that:
 - (a) enables users to generate intimate images;
 - (b) processes user image generation requests through servers, computer systems, or computing resources controlled by the service operator rather than solely on the user's local device; and
 - (c) distributes generated intimate images to users through the service.
- (8) "Identifiable individual" means an individual who is recognizable as an actual human individual by the human individual's face, likeness, or other distinguishing characteristic, including a unique physical feature or other recognizable attribute.
- (9) "Interactive computer service" means the same as that term is defined in 47 U.S.C. Sec. 230(f)(2).
- (10) "Intimate image" means an "intimate visual depiction" as those terms are defined in the Take It Down Act.
- (11) "Reasonable expectation of privacy" means an individual's expectation that:
 - (a) the individual's body will not be viewed, recorded, or depicted in an intimate image without the individual's knowledge and consent; and
 - (b) an intimate image of the individual will not be generated, created, distributed, or manipulated without the individual's knowledge and consent.

- (12) "Sexually explicit conduct" means the same as that term is defined in 18 U.S.C. Sec. 2256(2) (A).
- (13) "Take It Down Act" means the Tools to Address Known Exploitation by Immobilizing Technological Deepfakes on Websites and Networks Act, Public Law 119-12, codified at 47 U.S.C. Sec. 230 note.

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Part 2 Generation Services

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13-72b-201 Unlawful distribution of non-consensual counterfeit intimate images.

- (1) The distribution of a counterfeit intimate image by a generation service without the consent of the identifiable individual depicted in the image is a violation of the individual's reasonable expectation of privacy.
- (2) A generation service may not distribute a counterfeit intimate image without first obtaining consent from the identifiable individual depicted in the counterfeit intimate image.
- (3) To obtain consent sufficient to meet the requirements of Subsection (2), a generation service shall implement and maintain a consent system that:
 - (a) requires the identifiable individual depicted in the counterfeit intimate image to affirmatively provide consent before the counterfeit intimate image is distributed;
 - (b) assures the identity of the individual providing consent with reasonable accuracy; and
 - (c) maintains a record of the consent for a period of not less than seven years.
- (4) A generation service may not require an individual to disclose personally identifiable information beyond what is reasonably necessary to assure the individual's identity and obtain valid consent.

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13-72b-202 Civil liability for generation services.

- (1) A person, or the heirs of a deceased person, who has been injured by a violation recognized in Section 13-72b-201 may bring a civil action against the generation service that committed the violation.
- (2) If in an action described in Subsection (1) the court finds the defendant is violating or has violated any provision of Section 13-72b-201, the court shall:
 - (a) enjoin the defendant from continuing the violation; and
 - (b) order the defendant to remove or destroy any counterfeit intimate image distributed in violation of Section 13-72b-201 and all copies of the counterfeit intimate image within the defendant's possession or control.
- (3) It is not necessary that actual damages to the plaintiff be alleged or proved in an action under this section.
- (4) A plaintiff in an action under this section is entitled to recover:
 - (a) actual damages sustained, if any, including damages for emotional distress;

- (b) punitive damages, if the violation is found to be willful, reckless, or malicious; and
 - (c) reasonable attorney fees and costs.
- (5) Each distribution of a counterfeit intimate image depicting an identifiable individual without consent constitutes a separate violation.
- (6) The statute of limitations for a civil action under this section is the later of:
- (a) three years from the date the plaintiff discovered or reasonably should have discovered the violation; or
 - (b) 10 years from the date of the violation.

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13-72b-203 Safe harbor for generation services.

- (1) A generation service is not liable under Section 13-72b-202 if the generation service demonstrates that:
- (a) the generation service does not hold itself out as providing services for creating counterfeit intimate images;
 - (b) the generation service has implemented and maintains a written policy that:
 - (i) prohibits the generation and distribution of non-consensual counterfeit intimate images;
 - (ii) includes reasonable safeguards designed to prevent the creation of counterfeit intimate images; and
 - (iii) includes procedures for responding to reports of violations;
 - (c) the generation service acted in accordance with the policy described in Subsection (1)(b) with respect to the alleged violation;
 - (d) the generation service published the policy described in Subsection (1)(b) in a clear and conspicuous location accessible to the public on the generation service's website or primary user interface;
 - (e) the generation service published a general description of the reasonable safeguards described in Subsection (1)(b)(ii), which may describe technical measures in general terms without disclosing proprietary implementation details that could be exploited to circumvent the safeguards;
 - (f) the generation service implemented and maintained a consent system that complies with Subsection 13-72b-201(3); and
 - (g) upon receiving notice that a counterfeit intimate image was created or distributed without consent, the generation service took prompt action to prevent further distribution.
- (2) A generation service qualifies for the safe harbor under Subsection (1) even if a non-consensual counterfeit intimate image was distributed through the service if the generation service demonstrates that:
- (a) the generation service had no actual knowledge that the image was created or distributed without consent before receiving notice;
 - (b) the generation service's consent system was operating as designed;
 - (c) the generation service reasonably relied on information provided through the consent system; and
 - (d) upon discovering the violation, the generation service took prompt action to prevent further distribution.
- (3) A generation service that has implemented and maintains a written policy and reasonable technical safeguards that categorically prevent the generation of intimate images by the service

- is not required to comply with the consent requirements in Subsections (1)(b), (1)(c), (1)(e), (1)(f), (2)(b), and (2)(c) to qualify for safe harbor protection under this section.
- (4) In determining whether a generation service qualifies for safe harbor protection under this section, the court shall, among other relevant factors, consider whether the generation service's safeguards and policies:
- (a) are consistent with widely accepted industry standards;
 - (b) are regularly updated to address emerging technologies and methods for creating counterfeit intimate images;
 - (c) include technical measures to detect and prevent the generation of counterfeit intimate images; and
 - (d) include reasonable measures to ensure that users are not attempting to circumvent the safeguards.
- (5) A generation service may assert the safe harbor protections under this section by motion before trial and is not required to proceed to trial to establish eligibility for the safe harbor.

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13-72b-204 Heightened pleading standard for actions against generation services.

- (1) In any action brought under Section 13-72b-202 against a generation service, the complaint shall plead with particularity facts establishing that the generation service does not qualify for safe harbor protection under Section 13-72b-203.
- (2) To meet the pleading requirements of Subsection (1), the plaintiff shall include specific factual allegations, including dates, communications, and other evidence, demonstrating that the generation service does not qualify for safe harbor protection under Section 13-72b-203, including facts showing one or more of the following:
- (a) that the generation service holds itself out as providing services for creating counterfeit intimate images;
 - (b) that the generation service failed to implement a written policy that:
 - (i) prohibits the generation and distribution of non-consensual counterfeit intimate images;
 - (ii) includes reasonable safeguards designed to prevent the creation of counterfeit intimate images; and
 - (iii) includes procedures for responding to reports of violations;
 - (c) that the generation service distributed a counterfeit intimate image depicting the plaintiff without requesting or obtaining the plaintiff's consent;
 - (d) that the generation service had actual knowledge that a counterfeit intimate image was created or distributed without consent and failed to take prompt action to prevent further distribution; or
 - (e) that the generation service intentionally designed the service to facilitate the creation of non-consensual counterfeit intimate images.
- (3) General or conclusory allegations that a generation service violated this part are insufficient to state a claim.
- (4) If a complaint fails to meet the pleading requirements of this section, the court shall dismiss the action without prejudice.
- (5) A generation service may bring a motion to dismiss under this section before filing an answer or other responsive pleading.
- (6) If the court grants a motion to dismiss under this section and the plaintiff files an amended complaint that again fails to meet the pleading requirements of this section, the court shall:

- (a) dismiss the action with prejudice; and
- (b) award the generation service reasonable attorney fees and costs incurred in bringing the motion to dismiss the amended complaint.

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13-72b-205 Transparency and reporting requirements.

- (1) A generation service shall take reasonable measures to inform users that:
 - (a) distribution of non-consensual counterfeit intimate images is prohibited;
 - (b) violations of this part may result in civil liability; and
 - (c) the service provides procedures for reporting violations.
- (2) A generation service shall clearly and conspicuously provide to users procedures for reporting violations to the generation service.
- (3) A generation service shall publish in a clear and conspicuous location on the generation service's website or primary user interface:
 - (a) the written policy required by Subsection 13-72b-203(1)(b); and
 - (b) a general description of the safeguards implemented to prevent the generation of non-consensual counterfeit intimate images, which may describe technical measures in general terms without disclosing proprietary implementation details that could be exploited to circumvent the safeguards.

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**Part 3
Covered Platforms**

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13-72b-301 Unlawful distribution of non-consensual counterfeit intimate images on platforms.

- (1) A covered platform may not knowingly allow the distribution of a counterfeit intimate image without consent from the identifiable individual depicted in the counterfeit intimate image.
- (2) A covered platform knowingly allows the distribution of a counterfeit intimate image without consent if the covered platform:
 - (a) receives notice under Section 13-72b-302 that a counterfeit intimate image has been distributed without consent; and
 - (b) fails to comply with the takedown requirements in Section 13-72b-302.

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13-72b-302 Duty to remove -- Notice and takedown requirements.

- (1) A covered platform shall establish and implement notice and removal procedures that comply with the requirements established in Section 3(a) of the Take It Down Act.
- (2) The requirements described in Subsection (1) include:

- (a) establishing a mechanism for an individual depicted in a counterfeit intimate image to notify the covered platform that the image has been published on the covered platform without the individual's consent;
 - (b) providing clear and conspicuous notice of the mechanism described in Subsection (2)(a);
 - (c) upon receiving notice that meets the requirements established in the Take It Down Act, removing the reported counterfeit intimate image within 48 hours after receiving the notice; and
 - (d) making reasonable efforts to identify and remove any identical copy of the counterfeit intimate image.
- (3) A covered platform that complies in good faith with the notice and takedown procedures required by this section is not liable under this chapter for actions taken in accordance with this section before receiving notice.

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13-72b-303 Civil liability for covered platforms.

- (1) A person, or the heirs of a deceased person, who has been injured by a violation of Section 13-72b-301 may bring a civil action against the covered platform that committed the violation.
- (2) If in an action described in Subsection (1) the court finds the defendant is violating or has violated any provision of Section 13-72b-301, the court shall:
 - (a) enjoin the defendant from continued violation; and
 - (b) order the defendant to remove or destroy any counterfeit intimate image distributed in violation of Section 13-72b-301 and all copies of the counterfeit intimate image within the defendant's possession or control.
- (3) It is not necessary that actual damages to the plaintiff be alleged or proved in an action under this section.
- (4) A plaintiff in an action under this section is entitled to recover:
 - (a) actual damages sustained, if any, including damages for emotional distress;
 - (b) punitive damages, if the violation is found to be willful, reckless, or malicious; and
 - (c) reasonable attorney fees and costs.
- (5) Each failure to comply with the notice and takedown requirements established in Section 13-72b-302 after receiving notice of a counterfeit intimate image constitutes a separate violation of this chapter.
- (6) The statute of limitations for a civil action under this section is the later of:
 - (a) three years from the date the plaintiff discovered or reasonably should have discovered the violation; or
 - (b) 10 years from the date of the violation.

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13-72b-304 Safe harbor for covered platforms.

- (1) A covered platform is not liable under Section 13-72b-303 if the covered platform demonstrates that:
 - (a) the covered platform implemented and maintained notice and removal procedures that comply with Section 13-72b-302; and

- (b) the covered platform acted in good faith in responding to notices of non-consensual counterfeit intimate images.
- (2) A covered platform qualifies for safe harbor protection under this section even if a non-consensual counterfeit intimate image appeared on the platform if the covered platform demonstrates that:
 - (a) the covered platform had no actual knowledge of the image before receiving notice under Section 13-72b-302; and
 - (b) upon receiving notice, the covered platform complied with the takedown requirements in Section 13-72b-302.
- (3) In determining whether a covered platform acted in good faith in responding to a notice of a non-consensual counterfeit intimate image, the court shall consider:
 - (a) the size and resources of the covered platform;
 - (b) the volume of content distributed on the platform;
 - (c) the effectiveness of the platform's proactive measures; and
 - (d) whether the platform's measures are consistent with widely accepted industry standards.
- (4) A covered platform may establish the safe harbor protections under this section by motion to dismiss or motion for summary judgment.
- (5) If a court determines that a covered platform has established safe harbor protection under this section on a motion to dismiss or motion for summary judgment, the court shall:
 - (a) dismiss the action or grant summary judgment in favor of the covered platform; and
 - (b) award the covered platform reasonable attorney fees and costs.

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13-72b-305 Heightened pleading standard for actions against covered platforms.

- (1) In any action brought under Section 13-72b-303 against a covered platform, the complaint shall plead with particularity facts establishing that the covered platform does not qualify for safe harbor protection under Section 13-72b-304.
- (2) To meet the pleading requirements of Subsection (1), the plaintiff shall include specific factual allegations demonstrating that the covered platform does not qualify for safe harbor protection under Section 13-72b-304, including facts showing one or more of the following:
 - (a) that the covered platform failed to implement notice and removal procedures that comply with Section 13-72b-302;
 - (b) that the covered platform failed to act in good faith in responding to notices of non-consensual counterfeit intimate images;
 - (c) if the plaintiff provided notice under Section 13-72b-302:
 - (i) the specific date and method by which notice was provided;
 - (ii) the content of the notice provided;
 - (iii) the covered platform's response or failure to respond; and
 - (iv) facts establishing that the covered platform failed to comply with the takedown requirements in Section 13-72b-302; or
 - (d) if the plaintiff did not provide notice under Section 13-72b-302:
 - (i) facts establishing that the covered platform had actual knowledge of the non-consensual counterfeit intimate image before the plaintiff provided notice; and
 - (ii) facts establishing that the covered platform failed to take reasonable steps to remove the image within 48 hours after obtaining actual knowledge.

- (3) General or conclusory allegations that a covered platform violated this part are insufficient to state a claim.
- (4) If a complaint fails to meet the pleading requirements of this section, the court shall dismiss the action without prejudice.
- (5) A covered platform may bring a motion to dismiss under this section before filing an answer or other responsive pleading.
- (6) If the court grants a motion to dismiss under this section and the plaintiff files an amended complaint that again fails to meet the pleading requirements of this section, the court shall:
 - (a) dismiss the action with prejudice; and
 - (b) award the covered platform reasonable attorney fees and costs incurred in bringing the motion to dismiss the amended complaint.

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13-72b-306 Relationship to federal law.

- (1) This part does not expand or modify the notice and takedown requirements established in the Take It Down Act.
- (2) This part does not alter, modify, or limit Section 230 of the Communications Decency Act, 47 U.S.C. Sec. 230, and may not be construed to impose liability on a covered platform for acting as the publisher or speaker of information provided by another information content provider.

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**Part 4
Severability**

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13-72b-401 Severability.

- (1) If any provision of this chapter or the application of any provision to any person or circumstance is held invalid by a final decision of a court of competent jurisdiction, the remainder of this chapter shall be given effect without the invalid provision or application.
- (2) The provisions of this chapter are severable.

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